

		As noted above, Maruchan joins Priority’s motion. Priority argues in its opening brief that Maruchan, a nonsignatory, may enforce the arbitration agreement because (i) the agreement allegedly applies to “parties affiliated” with Priority and (ii) pursuant to the equitable estoppel doctrine. Priority Brief (ROA 45) at 15:10-16:4. Maruchan’s joinder states that it joins Priority’s arguments. ROA 49. Plaintiff filed an opposition to Maruchan’s joinder (ROA 61), but did not address Priority’s arguments regarding Maruchan’s ability to enforce the arbitration agreement in its opposition to Priority’s motion. Contrary to Priority’s claim, the arbitration agreement does not state that it applies to “parties affiliated” with Priority. The agreement states that it applies to “parties affiliated with [Priority’s] employee health and benefit plans.” Sylvia Decl. Ex. B (¶ 1.A.). Maruchan may, however, enforce the arbitration agreement as a nonsignatory pursuant to the equitable estoppel doctrine. As noted, plaintiff did not address in his opposition Priority’s argument that <i>Garcia v. Pexco, LLC</i> (2017) 11 Cal.App.5th 782, 787-88, applies here. See also <i>Gonzalez v. Nowhere Beverly Hills LLC</i> (2024) 107 Cal.App.5th 111, 123-29. Plaintiff alleges Priority, a staffing company, employed him and that he worked at Maruchan’s Irvine location. First Amended Complaint (ROA 14) ¶ 3. Plaintiff alleges “all Defendants carried out a joint scheme, business plan or policy,” alleges all factual allegations against “Defendants” collectively, and alleges all 21 causes of action against “all Defendants.” First Amended Complaint (ROA 14). Plaintiff provides no argument that under these circumstances <i>Garcia</i> and <i>Gonzalez</i> do not apply here such that plaintiff need not arbitrate his covered claims against Maruchan. The superior court action, including plaintiff’s individual and nonindividual PAGA claims, is stayed pending completion of the arbitration of plaintiff’s individual claims. The June 11, 2026 status conference is vacated. An ADR Review hearing is scheduled for <u>December 10, 2026 at 9:00 a.m.</u> in Department CX105. The parties are ordered to file a joint ADR Review hearing statement at least five court days before the hearing. Defendants to give notice.
9	Schimmelpfennig v. Philip Tupy, et al. 2024-01408612	<u>Plaintiff Paul Schimmelpfennig’s Motion for Leave to File First Amended Complaint to Substitute Successor in Interest</u> Liesa Schimmelpfennig (Leisa) moves for leave to file a first amended complaint to substitute Leisa as successor in interest for plaintiff and decedent Paul Schimmelpfennig (Paul). Although Leisa styles her motion as a motion for leave to amend, Leisa cites Civil Procedure Code sections 377.30 through 377.34 as support for the motion. The court thus construes the motion as a motion for an order substituting Leisa as successor in interest for Paul. No opposition has been filed. For the following reasons, Leisa’s motion is granted.

		Section 377.31 provides: "On motion after the death of a person who commenced an action or proceeding, the court shall allow a pending action or proceeding that does not abate to be continued by the decedent's personal representative or, if none, by the decedent's successor in interest." Pursuant to section 377.32(a), a person who seeks to commence an action or proceeding or to continue a pending action or proceeding as the decedent's successor in interest shall execute and file an affidavit or a declaration stating all of the following: (1) the decedent's name; (2) the date and place of the decedent's death; (3) "No proceeding is now pending in California for administration of the decedent's estate"; (4) if the decedent's estate was administered, a copy of the final order showing the distribution of the decedent's cause of action to the successor in interest; (5) either of the following, as appropriate, with facts in support thereof: (A) "The affiant or declarant is the decedent's successor in interest (as defined in Section 377.11 of the California Code of Civil Procedure) and succeeds to the decedent's interest in the action or proceeding"; or (B) "The affiant or declarant is authorized to act on behalf of the decedent's successor in interest (as defined in Section 377.11 of the California Code of Civil Procedure) with respect to the decedent's interest in the action or proceeding"; (6) "No other person has a superior right to commence the action or proceeding or to be substituted for the decedent in the pending action or proceeding"; and (7) "The affiant or declarant affirms or declares under penalty of perjury under the law of the State of California that the foregoing is true and correct." In addition, a certified copy of the decedent's death certificate shall be attached to the affidavit or declaration. Civ. Proc. Code § 377.32(c). Leisa filed a declaration (ROA 312) in support of her motion. The declaration includes all of the information required by section 377.32(a) and a copy of Paul's death certificate (ROA 312, Ex. A). Leisa is ordered to file and serve a clean (non-redlined) copy of the first amended complaint attached as Exhibit C to the Page Declaration (ROA 309) within 10 days of the date of this order. Plaintiff to give notice.
10 2:30 p.m.	Say v. QPS Production LLC, et al. 2024-01385096	Off calendar.